

25NNCV00854 25NNCV00854

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV00854 Hearing Date: September 18, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

SEPTEMBER 18, 2026

(CONTINUED FROM SEPTEMBER 11, 2026)

DEMURRER

Los

Angeles Superior Court Case # 25NNCV00854

MP: Defendant

City of Los Angeles

RP: Plaintiff

Derrick Tucker

NOTICE:

The Court is not requesting oral argument on this matter. Unless the

Court directs argument in the Tentative Ruling, no argument is required. The tentative ruling will become the ruling of the court if no argument is received.

ALLEGATIONS:

Derrick Tucker

("Plaintiff") alleges that on February 16, 2024, he rented an electric scooter from Defendant Neutron Holdings, Inc dba Lime ("Lime") and was riding it between 11829 Victory Blvd. and 11835 Victory Blvd. Plaintiff alleges that Defendants Adrian De La Hoya Jr. ("Hoya") and Victory Villas LLC ("VVL"), and Espinoza Apiaries ("EA") improperly placed wooden beams and/or similar objects strapped to a parked vehicle in a poorly lit/illuminated area. Plaintiff alleges that Hoya and VVL negligently owned, maintained, managed, and operated the premises. Plaintiff alleges that Defendants City of Los Angeles ("City") owned the public property on which the dangerous condition existed and that its employees created the condition.

The Second Amended Complaint ("SAC"), filed March 26, 2026, alleges: (1) General Negligence; (2) Premises Liability; and (3) Products Liability.

On June 26, 2026, Plaintiff dismissed without prejudice California Department of Transportation, State of California, Neutron Holdings, Inc. dba Lime, and Victory Villas LLC.

RELEVANT BACKGROUND AND MOTION ON CALENDAR:

On

September 19, 2025, Lime and City's demurrers to the initial Complaint were taken off-calendar in light of Plaintiff's FAC.

On February 26, 2026, City's demurrer to the Second Cause of Action in the FAC was sustained with 30 days leave to amend.

On

April 24, 2026, City

filed a demurrer to the SAC. On

September 10, 2026, Plaintiff filed an opposition. (The matter was initially scheduled for September 11, 2026, but was continued to September 18, 2026 to allow Plaintiff to file a copy of the opposition.) On

September 3, 2026, City filed a reply.

LEGAL STANDARD

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank, supra*, 39 Cal. 3d at 318.)

Pursuant to C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal. 4th 1074, 1082.)

MEET AND CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See O'Keefe Decl., ¶¶5-6, Ex. C.)

REQUEST FOR JUDICIAL NOTICE:

City requests

judicial notice of Exhibits: (A) Plaintiff's government tort claim filed August

19, 2023; (B) the complaint; (C) the FAC; and (D) the SAC. The request is granted as to Exhibits B-D. (Evid. Code, § 452(d).)

The request is granted as to Exhibit A. The court may take judicial notice

of the filing and contents of a government claim, but not the truth of the

claim. (Gong v. City of Rosemead (2014)

226 Cal.App.4th 363, 369 fn.1 [citing Evid. Code, §453(c) and Ludwig v.

Superior Court (1995) 37 Cal.App.4th 8, 14].) Thus, the Court will consider the contents of

Plaintiff's government claim.

ANALYSIS:

City demurs to the Second Cause

of Action for Premises Liability as to Count 3 – Dangerous Condition of Public

Property on the grounds that it fails to allege sufficient facts because: (1)

the SAC fails to allege any City-owned property; and (2) City is statutorily

immune under Government Code, § 818.2 for any injury caused by its alleged

failure to enforce parking laws and obstruction ordinances.

The Second Cause of Action's Premises Liability Cause of

Action at Count 3 is directed against City.

Plaintiff alleges that City, who owned public property on which a

dangerous condition existed, had actual and constructive notice of the

existence of a dangerous condition in sufficient time prior to the injury to

have corrected it. (SAC, Second Cause of

Action at PLD-PI-001(4) at Prem. L-4, Count 3(a).) Plaintiff alleges the condition was created

by City's employees. (Id. at

Prem. L-4, Count 3(b).) In the

attachment page, Plaintiff alleges in relevant part:

Defendants

negligently maintained and controlled the sidewalk area at or near 11829 and

11835 Victory Blvd., Los Angeles, CA 91606. In that area, wooden beams or

similar objects were protruding from a parked vehicle and extended into the

pedestrian pathway, creating a hazardous obstruction.

Defendants

allowed this condition to exist by permitting the vehicle with protruding beams

to remain in a manner that encroached upon the sidewalk and posed a danger to

those using the area with ordinary care. Defendants failed to take reasonable steps to remove the obstruction, correct the condition, or provide any warning of the hazard.

Defendants

owned, controlled, and/or maintained the public property where this incident occurred and knew or should have known that the vehicle and its protruding beams created a dangerous condition. Despite such knowledge, Defendants failed to remedy the condition within a reasonable time.

On or about

February 16, 2024, Plaintiff was riding an electric scooter along the sidewalk in this area when he encountered the protruding beams extending from the parked vehicle. Due to the placement and nature of the obstruction, Plaintiff was unable to avoid it, collided with the beams, fell, and sustained serious injuries.

The presence of

the vehicle with protruding beams obstructing the sidewalk constituted a dangerous condition that posed a substantial risk of harm to persons using the area with due care, and this condition was a direct and proximate cause of Plaintiff's injuries.

This claim is

brought pursuant to Government Code Section 835 and 815.2.

Defendants,

CITY OF LOS ANGELES; and DOES 2 through 25, were served with a claim for damages pursuant to Government Code Section 911.2 on or about August 16, 2024 and was rejected on September 16, 2024.

...

(SAC, MC-025, Attachment to Premises Liability Cause of Action.)

A.

City-Owned Property –

Sustained Without Leave to Amend

"The sole statutory basis for imposing liability on public entities as property owners is Government Code section 835." (Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1347.) Section 835 states:

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.)

"A plaintiff's allegations, and ultimately the evidence, must establish a physical deficiency in the property itself. [Citations.] A dangerous condition exists when public property 'is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,' or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users. [Citation.]" (Cerna v. City of Oakland (2008) 161 Cal.App.4th 1340, 1347–1348.) The Cerna court also addressed third-party conduct as follows:

A public entity may be liable for a dangerous condition of public property even where the immediate cause of plaintiff's injury is a third party's negligent or illegal act ... if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality. [Citation.] But it is insufficient to show only harmful third party conduct, like the conduct of a motorist. " '[T]hird party conduct, by itself, unrelated to the condition of the property, does not constitute a "dangerous condition" for which a public entity may be held liable.' " [Citation.]

There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third party conduct that injures the plaintiff. [Citation.] “[P]ublic liability lies under [Government Code] section 835 only when a feature of the public property has ‘increased or intensified’ the danger to users from third party conduct.” [Citation.]

(Cerna, *supra*,
161 Cal.App.4th at 1348 [citations omitted].)

City argues that Plaintiff has not alleged a dangerous condition on City-owned property and that that third-party conduct does not constitute a dangerous condition.

A review of the SAC shows that Plaintiff’s allegations rely on the placement of wooden beams or similar objects protruding from a parked vehicle, which extended into the pedestrian pathway. However, Plaintiff has not alleged facts regarding any physical condition of the sidewalk itself (or any other City-owned property). A parked vehicle carrying beams/objects is not a deficient physical condition of the public property.

Plaintiff argues that the FAC alleges that the condition was created by City’s employees. Plaintiff argues also that City may be liable for a dangerous condition if Plaintiff’s injury is the result of a third party’s negligent/illegal act if some physical condition of the property exposed its users to increased danger from a third-party’s negligent conduct. Plaintiff contends the FAC’s allegations “clearly assert that the dangerous condition was the condition of the sidewalk which included a physical impediment to pedestrians and cyclists.” (Opp. at p.6.) However, based on the bare allegations of the FAC, it is unclear what defective/dangerous physical conditions were created by City’s employees or what the physical impediments entailed, as no physical condition of the sidewalk was specifically alleged.

Moreover, the fact that there was a parked vehicle in the parking lot or had beams protruding onto the sidewalk (it is unclear if the City-owned property included the parking lot and/or the sidewalk) does not amount to a dangerous condition without further allegations that a defect in the physical condition of the property had a causal relationship to the third-party conduct of parking the vehicle and

having protruding beams. Thus, the Second Cause of Action fails to state sufficient facts to constitute a Premises Liability – Dangerous Condition of Public Property claim against City.

For these reasons, the demurrer to the Second Cause of Action is sustained. At this point, the Court finds that leave to amend would be futile. As previously discussed in the Court's February 23, 2026 ruling on City's demurrer to the FAC, Plaintiff's Claim for Damages to Person or Property ("government claim") alleged facts that Plaintiff was riding his scooter on the sidewalk in a poorly lit and/or illuminated area, when he collided with improperly placed wooden beams/similar objects, causing him to fall and sustain injuries. (See City RJN, Ex. A.) The Court sustained the demurrer to the FAC with respect to inadequate lighting allegations—which the Court observes is no longer alleged in the SAC. His government claim does not assert any physical defects in City-owned property. Thus, the only remaining allegations are with respect to the parked vehicle with protruding beams, which is not a defect to the physical condition of the property/sidewalk. Thus, the demurrer is sustained without leave to amend.

B.

Government Code, §
818.2 – Sustain Without Leave to Amend

Government

Code, § 818.2 states: "A public entity is not liable for an injury caused by adopting or failing to adopt an enactment or by failing to enforce any law."

"Where a city provides streets or sidewalks, or both, it does so with the expectation that motorists and pedestrians will make a lawful and not an unlawful use of them. The fact that the city may reasonably foresee that some motorists and pedestrians will use them in a negligent manner to the injury of others does not make it a joint tortfeasor with every motorist or pedestrian who uses them to the injury of another. While a city may by ordinance prohibit a misuse or negligent use of its streets and sidewalks, its failure to enforce such an ordinance imposes no liability upon it, in the absence of statute. This is so regardless of whether its failure is occasioned by want of barricades or signs or by want of necessary police officers." (Campbell v. City of Santa Monica

(1942) 51 Cal.App.2d 626, 629.)

City argues that it is immune from liability under section 818.2 for failure to enforce any parking and obstruction laws.

In opposition, Plaintiff argues that his allegations do not assert claims against City for failure to tow a vehicle parked next to a sidewalk or to enforce parking/obstruction laws. (Opp. at p.6.)

Although Plaintiff does not explicitly allege failure to enforce parking/obstruction laws, the SAC alleges that “Defendants allowed this condition to exist by permitting the vehicle with protruding beams to remain in a manner that encroached upon the sidewalk and posed a danger to those using the area with ordinary care. Defendants failed to take reasonable steps to remove the obstruction, correct the condition, or provide any warning of the hazard.” (SAC, MC-025, Attachment to Premises Liability Cause of Action [emphasis added].) Plaintiff also alleges that Defendants “failed to remedy the condition” and that “[d]ue to the placement and nature of the obstruction,” Plaintiff was unable to avoid it, collided with the beams, and was injured. (Id.)

To the extent that Plaintiff alleges that City allowed the condition to exist and failed to remove or correct the condition, City is immune from adopting or failing to adopt an enactment or by failing to enforce the law, including parking and/or obstruction violations. The mere fact that the vehicle and beams existed over the sidewalk or potentially City-owned property, is not enough without a specific statute imposing liability against City.

This is another ground to sustain the demurrer to the Second Cause of Action.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court’s records.

ORDER

Defendant City

of Los Angeles' Demurrer came on regularly for hearing on September 18, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

CITY'S DEMURRER TO THE SECOND CAUSE OF ACTION IN THE SAC IS SUSTAINED WITHOUT LEAVE TO AMEND.

DEFENDANT CITY OF LOS ANGELES TO
GIVE
NOTICE.

IT IS SO ORDERED.